

## 25STCV15352 25STCV15352

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-20

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Case Number: 25STCV15352 Hearing Date: July 20, 2026 Dept: 732

Miguel Esparza v. S&B Filters, Inc., et al.

Monday, July 20, 2026

CASE NUMBER: 25STCV15352

OPPOSED

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Defendant S&B Filters, Inc.'s Demurrer and  
Motion to Strike Portions of Second Amended Complaint

Defendant S&B Filters, Inc.'s Motion to  
Reclassify Action as Limited.

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Facts: This is an  
action for violation of the California Invasion of Privacy Act. The First  
Amended Complaint ("FAC") alleges as follows. Plaintiff Miguel Esparza  
("Esparza") accessed the website of Defendant S&B Filters, Inc.  
("Defendant") in December 2024, and was subjected to third-party spyware that  
shared his IP address, location, device and browser information, social media  
accounts, and other identifying information without adequate notice or an  
opportunity to consent. (FAC ¶¶ 17–69.)

Procedural History: Plaintiff

filed the Complaint on September 19, 2024, alleging one causes of action for violation of Penal Code § 638.51, subd.

(a).

This

court on March 3, 2026, overruled Defendant's demurrer to the FAC, and granted its motion to strike the prayer for punitive damages with leave to amend.

Plaintiff

filed a Second Amended Complaint on March 23, 2026, alleging three causes of action:

1.

Penal Code § 638.51

2.

Invasion of Privacy

3.

Intrusion Upon Seclusion

Defendant

filed the present demurrer, motion to strike, and motion to reclassify on April 24, 2026.

Plaintiff

filed oppositions on July 7, 2026.

Defendant

filed replies on July 13, 2026.

Analysis:

I.

DEMURRER

A demurrer should be sustained only where the defects appear on the face of the pleading or are judicially noticed. (Code Civ. Pro., §§ 430.30, et seq.) In particular, as is relevant here, a court should sustain a demurrer if a complaint does not allege

facts that are legally sufficient to constitute a cause of action. (See id. § 430.10, subd. (e).) As the Supreme Court held in *Blank v. Kirwan* (1985) 39 Cal.3d 311: “We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. [Citation.]”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly's of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendant S&B Filters, Inc. (“Defendant”) demurrers to the Second Amended Complaint (“SAC”) of Plaintiff Miguel Esparza (“Plaintiff”) as to the second and third causes of action for invasion of privacy and intrusion upon seclusion. Defendant argues that Plaintiff has not alleged the

required elements of either claim, including a reasonable expectation of privacy in the material sought, or an intrusion into same that is highly offensive. (Demurrer at pp. 2–11.)

To state a claim for invasion of privacy under the California Constitution, a plaintiff must allege: “(1) a legally protected privacy interest; (2) a reasonable expectation of privacy in the circumstances; and (3) conduct by defendant constituting a serious invasion of privacy. (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 39–40.) Meanwhile, “A privacy violation based on the common law tort of intrusion has two elements. First, the defendant must intentionally intrude into a place, conversation, or matter as to which the plaintiff has a reasonable expectation of privacy. Second, the intrusion must occur in a manner highly offensive to a reasonable person.” (Hernandez v. Hillsides, Inc. (2009) 47 Cal.4th 272, 286.)

Defendant argues that Plaintiff fails to allege either a reasonable expectation of privacy or a serious or highly offensive intrusion upon that interest under the circumstances alleged in the SAC. Defendant argues that Plaintiff’s claimed privacy interest arises under the California Consumer Privacy Act of 2018 (“CCPA”), but that the claims do not comport with the procedural prerequisites for a private right of action under that law. (Demurrer at pp. 3–4.) Defendant argues that Plaintiff fails to plead any substantial invasion of the asserted privacy interest, as the present case, related to the tracking and selling of internet user data, is unlike the conventional circumstances in which intrusion upon privacy is found. (Demurrer at pp. 4–5.) Defendant argues that the circumstances of this case, in which Plaintiff is a “tester” who seeks out violations of privacy laws, and in which he filed this suit after visiting Defendant’s site once, do not support the existence of a serious intrusion upon any privacy interests. (Demurrer at pp. 5–7.)

Defendant’s arguments rest largely upon identifications of the ordinary elements of Plaintiff’s privacy claims, combined with assertions that the circumstances of the present case, involving collection and disclosure of internet user data to third parties, does not satisfy them. The parties offer virtually no mandatory authority for the proposition that Plaintiff’s claims may or may not be pleaded as constitutional or common law privacy claims. However, substantial non-binding authority exists in the form of federal decisions, and their reasoning uniformly weighs against Defendant in

this matter.

There appears to be general agreement among federal courts applying California law in the context of privacy torts that internet users have a legitimate and reasonable expectation of privacy in their personal information, in line with the information protected under the CCPA in Civil Cod § 1798.140, subd. (v) — particularly where the defendant web site operator assures its users that their data is not being shared. (See *In re Google RTB Consumer Privacy Litigation* (N.D. Cal. 2022) 606 F.Supp.3d 935, 947; *Saleh v. Nike, Inc.* (C.D. Cal. 2021) 562 F.Supp.3d 503, 525 [“[M]ore routine data collection practices may be highly offensive if a defendant disregards consumers’ privacy choices while simultaneously h[olding] itself out as respecting them.”]; *Shah v. Politico LLC* (N.D. Cal., Feb. 6, 2026, No. 25-CV-05213-NW) 2026 WL 323269, at \*4 [distinguishing case where plaintiff “did not have a reasonable expectation of privacy: the defendant there had not offered [plaintiff] the opportunity to opt out of tracking cookies, so he could not reasonably expect that cookies would not be deployed when he browsed defendant’s website”]; *In re Facebook, Inc. Internet Tracking Litigation* (“Facebook Tacking”)(9th Cir. 2020) 956 F.3d 589, 602 [“laintiffs have plausibly alleged that Facebook set an expectation that logged-out user data would not be collected, but then collected it anyway.”].)

Plaintiff’s allegations in the SAC are in line with the above authority. Plaintiff does not merely allege that Defendant collects information on visitors to its site, but rather that it presents a banner on its site permitting users to accept or reject data collection preferences, when in fact its various third-party trackers begin collecting data before the user selects any option, and in many cases continue to collect data even after the user rejects the data collection options. (SAC ¶¶ 28, 32, 56, 71, 77, 83, 85, 87.) These facts thus allege that Defendant by its conduct creates an expectation of privacy for visitors personal information, and then “intentionally” abrogates that privacy interest by continuing to share data regardless of user preference. (SAC ¶ 111.) Courts have found both a reasonable expectation of privacy and a highly offensive invasion of that interest in similar circumstances, at least one that survives a motion to dismiss at the pleading stage. (*Facebook Tracking*, supra, 956 F.3d at p. 606.)

Defendant’s arguments to the contrary are not persuasive. It

argues that Plaintiff, as a “tester” who searches for internet privacy violations in order to bring suit, had no reasonable expectation of privacy in his personal information, and that he alleges only a single visit to the site in December 2024. (Demurrer at pp. 6–7.) But Defendant identifies no authority for the proposition that a tester lacks an expectation of privacy in their personal information; nor is it alleged that Plaintiff consented to the disclosure of his information on the site in question. Rather, it is alleged that Plaintiff visited Defendant’s site because he was interested in procuring their services. (SAC ¶ 8.) It cannot be concluded that a reasonable privacy interest, or highly offensive intrusion thereon, does not exist based on the facts alleged.

Defendant’s argument with respect to the CCPA is misplaced. Defendant cites Civil Code § 1798.150, which describes a private right of action for a data breach against a site operator that stores visitors’ personal information. (Demurrer at pp. 3–4; Civ. Code § 1798.150, subd. (a).) Defendant notes that this law permitting private actions contains a safe harbor provision in which a prospective plaintiff must give the defendant 30 days notice and an opportunity to cure before filing suit, and argues that Plaintiff has not done so here. (Demurrer at p. 4.) But Plaintiff does not bring an action under Civil Code § 1798.150, but merely cites the CCPA to demonstrate the existence of a reasonable expectation of privacy in the information at issue.

Defendant also argues that no damages may be sought in connection with a claim based on the constitutional right to privacy. (Demurrer at p. 7.) But this argument furnishes no basis to sustain the demurrer to any cause of action, because if damages are not available on a constitutional privacy claim, injunctive relief is. (See *Richardson-Tunnell v. Schools Ins. Program for Employees (SIPE)* (2007) 157 Cal.App.4th 1056, 1066 [“Injunctive relief is available as a remedy for violation of the privacy clause of the California Constitution.”], disapproved on other grounds in *Quigley v. Garden Valley Fire Protection Dist.* (2019) 7 Cal.5th 798, and *Leon v. County of Riverside* (2023) 14 Cal.5th 910.) In any case, damages are available on a common law claim for invasion of privacy. (See *Fairfield v. American Photocopy Equipment Co.* (1955) 138 Cal.App.2d 82, 87 [discussing award of damages on a common law privacy claim].)

The demurrer is therefore OVERRULED.

II.

## MOTION TO STRIKE

Any

party, within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code Civ. Proc., § 435(b)(1)). The notice of motion to strike a portion of a pleading shall quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count or defense. (California Rules of Court Rule 3.1322.)

The grounds for a motion to strike shall appear on the face of the challenged pleading or form any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437(a)). The court then may strike out any irrelevant, false, or improper matter inserted in any pleading and strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436.) When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. (*Perlman v. Municipal Court* (1979) 99 Cal.App.3d 568, 575.)

Defendant moves to strike the prayer for punitive damages, the prayer for injunctive relief, and the prayer for disgorgement of profits. Defendant argues that the claim for punitive damages is not supported by sufficient allegations of malicious, oppressive, or fraudulent conduct. (Motion at pp. 2–4.) Defendants argue that Plaintiff's prayer for injunctive relief and disgorgement were added without leave of court and are unsupported. (Motion at pp. 4–5.)

Punitive damages are allowed in non-contract cases when a defendant is guilty of "oppression, fraud, or malice . . . ." (Civ. Code § 3294, subd. (a).) The terms are defined as:

1.

"Malice" means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

2.

“Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.

3.

“Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code § 3294, subd. (c).)

Something more than the mere commission of a tort is always required for punitive damages. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894.) Proof of negligence, gross negligence, or recklessness is insufficient to warrant an award of punitive damages. (Dawes v. Sup.Ct. (Mardian) (1980) 111 Cal.App.3d 82, 88–89.) Punitive damages may be recovered in an action for negligence or other nonintentional torts if the plaintiff pleads and proves that the defendant acted with the state of mind described as “conscious disregard” of the potential dangers to others. (Pfeifer v. John Crane, Inc. (2013) 220 Cal.App.4th 1270, 1299.) When malice is based on a defendant's conscious disregard of Plaintiff's rights, the conduct must be both despicable and willful. (College Hospital v. Superior Court (1994) 8 Cal.4th 794, 713 (“College Hospital”).)

The SAC adequately pleads entitlement to punitive damages.

As an initial matter, although this court previously ruled that Plaintiff could not seek punitive damages for Plaintiff's first cause of action under Penal Code § 638.51 alone, Plaintiff has since amended the pleading to include tort claims for invasion of privacy which survive demurrer, discussed above.

Moreover, the SAC pleads adequate factual basis for Plaintiffs prayer for punitive damages. It is alleged that Defendant falsely indicated to visitors to its website that they had the option of opting out of data disclosures to third parties, when in fact such disclosures were already being made, and in fact would continue to be made if the visitors opted out of same. (SAC ¶¶ 28, 32, 56, 71, 77, 83, 85, 87.) It is alleged that Defendant did this intentionally. (SAC ¶ 150.) “Taken in context, the words “wrongfully and intentionally” in paragraph eight describe a



knowing and deliberate state of mind from which a conscious, disregard of petitioner's rights might be inferred a state of mind which would sustain an award of punitive damages." (Perkins v. Superior Court (1981) 117 Cal.App.3d 1, 6.) Thus the punitive damages claim is not subject to strike.

The remaining requests for injunctive relief and disgorgement are also not subject to strike. It is true that this court granted leave to amend as to Plaintiff's prayer for punitive damages. But said order was grounded, not on the failure of factual allegations supporting a prayer for punitive damages, but upon Plaintiff's failure to allege any claim beyond a statutory cause of action for which punitive damages were not available. While an amended pleading following demurrer "must be "within the scope of the order granting leave to amend" (Harris v. Wachovia Mortgage, FSB (2010) 185 CalApp.4th 1018, 1023), the scope of leave to amend here was broader than the mere punitive damages allegations, but extended to the allegation of claims that could support such a prayer, and claims for relief associated therewith. Given this relatively expansive scope, the prayer for injunctive relief and disgorgement are not beyond the scope of the court's prior order.

Nor are the prayers for disgorgement or injunctive relief infirm. Defendant identifies no authority for the proposition that disgorgement cannot be had except by argument related to the substantive merit of Plaintiff's claims, discussed in relation to the demurrer above. And the authority that Defendant cites for the proposition that a prayer for injunctive relief must be supported by specific factual allegations of irreparable harm and no adequate remedy at law, rather than merely supported by proof of same before being awarded, does not find support in the authorities cited. (See Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1146.) Plaintiff pleads a statutory claim for which injunctive relief is specifically permitted (See Penal Code § 6337.2, subd. (b)), and a constitutional privacy claim which may furnish a basis for same. (Richardson-Tunnell, supra, 157 Cal.App.4th at p. 1066.)

The motion to strike is therefore DENIED.

I.  
MOTION TO  
RECLASSIFY

Code Civ. Proc. section 403.040 provides in relevant part:

(a) The plaintiff, cross-complainant, or petitioner may file a motion for reclassification within the time allowed for that party to amend the initial pleading. The defendant or cross-defendant may file a motion for reclassification within the time allowed for that party to respond to the initial pleading. The court, on its own motion, may reclassify a case at any time. A motion for reclassification does not extend the moving party's time to amend or answer or otherwise respond. The court shall grant the motion and enter an order for reclassification, regardless of any fault or lack of fault, if the case has been classified in an incorrect jurisdictional classification.

(b) If a party files a motion for reclassification after the time for that party to amend that party's initial pleading or to respond to a complaint, cross-complaint, or other initial pleading, the court shall grant the motion and enter an order for reclassification only if both of the following conditions are satisfied:

(1) The case is incorrectly classified.

(2) The moving party shows good cause for not seeking reclassification earlier

The appropriate standard for determining whether a matter must be reclassified for failing to meet the jurisdictional threshold for the amount of recovery is not whether damages “realistically” will exceed the threshold, but rather whether it is possible that the damages will. (See *Maldonado v. Superior Court of Orange County* (1996) 45 Cal.App.4th 397, 402 [“the trial court looks to the possibility of a jurisdictionally appropriate verdict, not to its probability.”]; see also *Walker v. Superior Court of Los Angeles County* (1991) 53 Cal.3d 257, 270 [“the [trial] court may believe it highly unlikely that plaintiff will recover the amount demanded, but this is not enough to defeat jurisdiction, unless it appears to a legal certainty that plaintiff cannot recover the amount [of the] demand.”]; *Ytuarte v. Superior Court of Los Angeles County* (2005) 129 Cal.App.4th 266, 278–79.)

This matter is not subject to reclassification as a limited jurisdiction case. The SAC seeks statutory damages, compensatory damages (SAC

¶¶ 144, 152), punitive damages, and disgorgement of profits which the court cannot positively conclude will not exceed \$35,000.00. Additionally, the SAC seeks injunctive relief, which may not be granted in a limited civil case. (Code Civ. Proc. § 580, subd. (b)(2).)

The motion for reclassification is therefore DENIED.

Superior Court of California

County of Los Angeles

Department 6

MIGUEL ESPARZA;

Plaintiffs,

vs.

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S&B FILTERS,

INC., et al.;

Defendants.

Case No.:

25STCV15532

Hearing Date: July 20, 2026

[TENTATIVE] RULING RE:

Defendant

S&B Filters, Inc.'s Demurrer and Motion to Strike Portions of Second Amended Complaint

Defendant S&B Filters, Inc.'s Motion to Reclassify Action as Limited.

Defendant S&B

Filters, Inc.'s Demurrer and Motion to Strike Portions of the Second Amended  
Complaint are OVERRULED and DENIED.

Defendant S&B Filters, Inc.'s Motion to Reclassify  
Action as Limited is DENIED.

Plaintiff to provide notice

Dated: July 20, 2026

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Hon.

Richard S. Kemalyan

Judge

of the Superior Court